

IT Act 2000

Information Technology Act, 2000

Applicable IT Acts

User Query : IIIT delhi is storing my information and selling it to third party organisation which my approval and all the information is leaked online

Job Id. : 3f1c1f31-42ba-49b6-8aee-5930de8f1cd6/IT Act

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APPLICABLE SECTIONS

Section 8 Confidentiality of Information

This section deals with the confidentiality of information and states that any person who secures access to any electronic record, book, register, correspondence, information, or data shall not, without the consent of the person concerned, disclose or give access to such record, book, register, correspondence, information, or data.

Section 9 Confidentiality of Information

This section further emphasizes the confidentiality of information and states that any person who contravenes the provisions of **section 8** shall be liable for punishment.

Section 43A Compensation for improper disclosure of information

This section specifically deals with the compensation for improper disclosure of information collected in an electronic form.

Section 66 Hacking with Computer System

This section relates to hacking and unauthorized access to computer systems.

Section 67 Publishing of Information in electronic form

This section deals with publishing of information in electronic form which could be considered as obscene.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The Information Technology Act, 2000 aims to regulate cybercrimes and electronic records in India. In this scenario, IIIT Delhi's actions raise several concerns:

- **Unauthorized Disclosure:** The disclosure of personal information without consent is a clear contravention of **Section 8** and 9 of the IT Act, 2000.
- **Improper Disclosure:** The sale of personal information to third-party organizations without consent could be considered as improper disclosure under **Section 43A**.
- **Data Protection:** The leaking of personal information online could be seen as a breach of confidentiality and trust.

✓ STRENGTHS & RIGHTS

1

Right to Information Confidentiality

The IT Act provides provisions to safeguard the confidentiality of information.

2

Remedies for Unauthorized Disclosure

Sections 8, 9, and 43A provide remedies for unauthorized disclosure of information.

X RISKS & OBLIGATIONS

1

Penalties for Contravention

Any person contravening the provisions of the IT Act may face penalties and compensation.

2

Punishment for Hacking

Section 66 provides for punishment for hacking and unauthorized access to computer systems.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Filing a Complaint: A complaint can be filed with the concerned authorities, such as the Cybercrime Cell or the Information Technology Commission.
2. Investigation: The authorities will investigate the matter and take necessary actions.
3. Presenting Electronic Evidence: Electronic evidence can be presented in court as per the provisions of the IT Act and the Indian Evidence Act, 1872.
4. In conclusion, IIIT Delhi's actions in storing and selling personal information without consent and leaking it online may attract various provisions of the IT Act, 2000. The affected individual can file a complaint and seek remedies under the Act.

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